

JASON M. BARBARA & ASSOCIATES, P.C.

EXHIBIT "D"

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA AND THOMAS E.
DESOUSA,

Plaintiff,

Index No.: 600371/2021

-against-

**NOTICE FOR DISCOVERY AND
INSPECTION**

RICHARD A. CALVAGNO II AND PATRICK
J. KARCHER,

Defendant.
-----X

S I R S :

PLEASE TAKE NOTICE that pursuant to CPLR 3120, the Plaintiffs are hereby required to produce and permit discovery and inspection by the Defendant, Richard A. Calvagno II, or his attorneys, or someone acting on his behalf, of the documents and things identified on the Schedule, at 3 Dakota Drive, Suite 300, New Hyde Park, New York 11042, on the 5th day of April, 2021, at 10:00 o'clock in the forenoon of that day.

The inspection is to be made by means of photocopying.

Dated: New Hyde Park, New York
March 10, 2021

Yours, etc.,


JASON M. BARBARA & ASSOCIATES, P.C.

Nabeela Hamid, Esq.

Attorneys for Defendant Richard A. Calvagno II

3 Dakota Drive, Suite 300

New Hyde Park, New York 11042

Telephone: (516) 775-5557

Facsimile: (516) 775-5558

TO: JOHN N. CUOMO
Attorneys for Plaintiffs
11 Fern Drive
Commack, New York 11725
Tel: (631) 403-0515
Email: johncuomo@gmail.com

WARSHAW BURSTEIN, LLP
Marc A. Lavaia, Esq.
Attorneys for Defendant Patrick J. Karcher
575 Lexington Avenue, 7th Floor
New York, New York 10002
Tel: (212) 984-7740
Email: mlavaia@wbny.com

1. All photographs, motion pictures, sketches, memorialization's in Plaintiffs' possession pertaining to the alleged incidents in the Complaint pursuant to CPLR 3101(I).
2. Any and all statements made by the witnesses to the events described in all paragraphs of the Complaint.
3. True and complete copies of all photographs and other documentation that depicts, describes, evaluates or otherwise related to the condition of the area of Defendant's property as alleged in the Complaint.
4. Pursuant to CPLR 3101(e), all documents relating to or evidencing communications between the Defendant and the Plaintiff concerning the incidents alleged in the Complaint.
5. True and complete copies of any and all documents demonstrating, evidencing, and/or relating in any manner to Plaintiffs' allegations of Defendant's reckless driving.
6. True and complete copies of any and all documents demonstrating, evidencing, and/or relating in any manner to Plaintiffs' allegations of Defendant creating excessive noise and vibrations with his Dodge automobile.
7. True and complete copies of any and all documents related to and/or evidencing the names and addresses of any and all proposed expert witnesses Plaintiffs intends to call and complete copies of such experts' curriculum vitae and their written expert reports, including all drafts of such reports.
8. True and complete copies of any and all documents of every kind that were in any way considered, reviewed, consulted and/or relied upon by any expert retained by Plaintiffs in connection with the formulation of his or her opinion in this matter.

Index No.:600371/2021

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK**

**DIANCE C. DESOUSA AND THOMAS E.
DESOUSA,**

Index No. 600371/2021

Plaintiff,

-against-

**RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,**

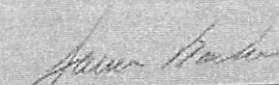
Defendant.

NOTICE FOR DISCOVERY AND INSPECTION

JASON M. BARBARA & ASSOCIATES, P.C.

*Attorneys for Defendant,
Richard C. CALVAGNO II
Office and Post Office Address
3 Dakota Drive, Suite 300
New Hyde Park, NY 11042
T: (516) 775-5557
F: (516) 775-5558*

Signature (Rule 130.1.1a)


JASON M. BARBARA, ESQ.

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA AND THOMAS E.
DESOUSA,

Plaintiff,

Index No.: 600371/2021

-against-

COMBINED DEMANDS

RICHARD A. CALVAGNO II AND PATRICK
J. KARCHER,

Defendant.

-----X

S I R S :

PLEASE TAKE NOTICE that Defendant, Richard A. Calvagno II, demands responses from Plaintiffs to the following demands within the time and manner prescribed by court rules. The date of birth and address of each plaintiff.

DEMAND FOR EXPERT WITNESS DISCLOSURE

Please take notice that pursuant to CPLR 3101 (d)(1), Defendant demands that you set forth the following:

1. The name and address of each and every person you expect to call as an expert witness at the time of trial;
2. A detailed statement of the subject matter on which each expert is expected to testify;
3. The substance of the facts and opinions on which each expert is expected to testify;
4. The qualifications of each expert witness; and

5. A summary of the factual grounds for each expert's opinion.
6. date, time, and location of the occurrence.

DEMAND FOR EXPERT WITNESS DISCLOSURE

Please take notice that pursuant to CPLR Article 31, Defendant demands that you disclose within twenty (20) days of receipt of this notice, the following:

1. Copies of all medical reports of those physicians who have previously treated or examined the Plaintiffs and who will testify on his/her behalf at the time of trial. These shall include a detailed recital of the injuries and conditions as to which testimony will be offered at the time of trial of this action;
2. Duly executed and acknowledged written authorizations permitting Defendant to obtain and make copies of all treating physician's office records, and all hospital records identified in the statement of the examined party's physicians;
3. The name and addresses of all physicians who rendered medical services to Plaintiffs for the injuries alleged in the complaint and the total amount of each physician's bill to date;
4. The names and addresses of all hospitals and/or clinics who rendered medical services to Plaintiffs for the injuries alleged in the complaint and the total amount of each hospital and/or clinic's bill to date;

DEMAND FOR WITNESSES

Please take notice that pursuant to CPLR Article 31, Defendant demands that you disclose within twenty (20) days of receipt of this notice, the following:

1. The names and addresses of any and all persons with knowledge concerning the

events alleged in the complaint.

DEMAND FOR PHOTOGRAPHS

Please take notice that pursuant to CPLR Article 31, Defendant demands that you disclose within twenty (20) days of receipt of this notice, the following:

1. All photographs taken of Defendant's house depicting the vehicle involved in the alleged Complaint;
2. All photographs taken of Defendant's front yard and side yard depicting the condition of the trash alleged in the Complaint;
3. All photographs depicting the catered events and or conditions which are subject of Plaintiffs' complaint; and
4. All photographs depicting the boat slip rental alleged in the Complaint.

DEMAND FOR VIDEOS

1. All videos taken of Defendant's automobile idling as alleged in the Complaint;
and
2. All videos taken of Defendant driving recklessly and loudly as alleged in the Complaint.

Dated: New Hyde Park, New York
March 10, 2021

Yours, etc.,

JASON M. BARBARA & ASSOCIATES, P.C.

Nabeela Hamid, Esq.

Attorneys for Defendant Richard A. Calvagno II.

3 Dakota Drive, Suite 300

New Hyde Park, New York 11042

Telephone: (516) 775-5557

Facsimile: (516) 775-5558

TO: **JOHN N. CUOMO**
Attorneys for Plaintiffs
11 Fern Drive
Commack, New York 11725
Tel: (631) 403-0515
Email: johncuomo@gmail.com

WARSHAW BURSTEIN, LLP
Marc A. Lavaia, Esq.
Attorneys for Defendant Patrick J. Karcher
575 Lexington Avenue, 7th Floor
New York, New York 10002
Tel: (212) 984-7740
Email: mlavaia@wbny.com

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK**

-----X
**DIANE C. DESOUSA AND THOMAS E.
DESOUSA,**

Plaintiff,

Index No.: 600371/2021

-against-

**DEMAND FOR BILL OF
PARTICULARS**

**RICHARD A. CALVAGNO II AND PATRICK
J. KARCHER,**

Defendant.

-----X

S I R S :

PLEASE TAKE NOTICE that pursuant to Section 3041 and 3044 of the CPLR, Plaintiffs are required to serve upon the undersigned attorneys for Defendant, Richard A. Calvagno II, within 20 days hereof, a Verified Bill of Particulars concerning the following matters:

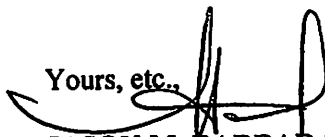
1. The date of birth and address of each plaintiff.
2. The date, time, and location of the occurrence.
3. The date and time the sound levels of Defendant's Dodge automobile were measured.
4. Identity the instrument used to measure the sound level of Defendant's Dodge automobile.
5. State the date, time, and place the instrument used to measure the sound level was purchased.
6. State the distance from where the Plaintiffs measured the sound level of Defendant's Dodge automobile.

7. State the location of Defendant's Dodge automobile at the time the sound levels of the automobile were measured.
8. State the date, place, manner, by whom, and to whom or which agency any noise complaint was made to.
9. State whether such noise complaint was in writing or oral, and specify the substance of such complaint.
10. State the date, place, manner, by whom, and to whom or which agency any complaint was made to regarding the alleged October 24, 2020 catered party on Defendant's property.
11. State whether such complaint was in writing or oral, and specify the substance of such complaint.
12. State the date, place, manner, by whom, and to whom or which agency any complaint was made to regarding the alleged November 28-29, 2020 event on Defendant's property.
13. State whether such complaint was in writing or oral, and specify the substance of such complaint.
14. State the date, place, manner, by whom, and to whom or which agency any complaint was made to regarding the alleged trash and debris on Defendant's property.
15. State whether such complaint was in writing or oral, and specify the substance of such complaint.
16. State the date, place, and time when Plaintiffs made complaints to the Defendant.
17. State whether such complaint was in writing or oral, and specify the substance of such complaint.

18. A general statement describing the act/conduct or omission of act/conduct constituting the private nuisance cause of action alleged in the Complaint.
19. A general statement describing the act/conduct or omission of act/conduct constituting the public nuisance cause of action alleged in the Complaint.
20. A general statement describing the extreme and outrageous conduct constituting the intentional infliction of emotional distress cause of action alleged in the Complaint.
21. Detailed description of each mental injury sustained from the alleged acts of defendant.
22. The name of every hospital, clinic or institution where any treatment or examination was rendered, and dates of admission and discharge.
23. The name and address of every treating physician, practitioner or therapist who conducted an examination or rendered treatment, and dates of examination and treatment.
24. A statement of each and every statute, codes or ordinance which it is claimed the Defendant violated.

Dated: New Hyde Park, New York
March 10, 2021

Yours, etc.,



JASON M. BARBARA & ASSOCIATES, P.C.

Nabeela Hamid, Esq.

Attorneys for Defendant Richard A. Calvagno II.

3 Dakota Drive, Suite 300

New Hyde Park, New York 11042

Telephone: (516) 775-5557

Facsimile: (516) 775-5558

TO: JOHN N. CUOMO
Attorneys for Plaintiffs
11 Fern Drive
Commack, New York 11725
Tel: (631) 403-0515
Email: johncuomo@gmail.com

WARSHAW BURSTEIN, LLP

Marc A. Lavaia, Esq.

Attorneys for Defendant Patrick J. Karcher

575 Lexington Avenue, 7th Floor

New York, New York 10002

Tel: (212) 984-7740

Email: mlavaia@wbny.com

Index No.:600371/2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLKDIANCE C. DESOUSA AND THOMAS E.
DESOUSA,

Index No. 600371/2021

Plaintiff,

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendant.

DEMAND FOR BILL OF PARTICULARS

JASON M. BARBARA & ASSOCIATES, P.C.

*Attorneys for Defendant,**Richard C. CALVAGNO II**Office and Post Office Address*

3 Dakota Drive, Suite 300

New Hyde Park, NY 11042

T: (516) 775-5557

F: (516) 775-5558

Signature (Rule 130.1.1a)

JASON M. BARBARA, ESQ.

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X	Index No: 600371/2021
DIANE C. DESOUSA AND THOMAS E. DESOUSA,	
Plaintiffs,	PATRICK J. KARCHER'S
	RESPONSES TO
-against-	PLAINTIFFS' COMBINED
	<u>DEMANDS</u>
RICHARD A. CALVAGNO II AND PATRICK J.	
KARCHER,	
Defendants.	
-----X	

Pursuant to CPLR Article 31, Defendant Patrick J. Karcher ("Karcher") by his attorneys Warshaw Burstein LLP, responds as follows to Plaintiffs Diane C. Desousa's and Thomas E. Desousa's ("Plaintiffs") Combined Demands, dated April 1, 2021, (the "Combined Demands") as follows:

GENERAL OBJECTIONS

1. Karcher objects to the production of any documents that are privileged, including without limitation, those prepared in anticipation of litigation or those protected by the attorney-client privilege or the attorney work product doctrine.
2. Karcher objects to producing any document that contains confidential or proprietary business information without sufficient safeguards to protect the confidential and proprietary nature of such documents.
3. Karcher objects to the Combined Demands insofar as they seek information and documentation that is duplicative.
4. Only those documents in Karcher's possession, control and custody at the time of this response will be produced. Karcher objects to producing any documents that come into his

possession, custody and control in the form of copies produced by any other party during discovery.

5. Karcher objects to each and every demand insofar as the demands are vague, over broad, unduly burdensome and fail to provide reasonable limitations of time for documents subject to production.

6. Karcher objects to each and every demand insofar that it purports to request information that is not relevant to the subject matter or claims involved in the pending action or that is not reasonably calculated to lead to the discovery of admissible evidence.

7. Karcher objects to each and every demand insofar as they seek production or identification of documents obtained by Karcher's counsel as part of discovery, trial preparation, investigation or case development.

8. Karcher does not concede the relevancy, materiality, competency or admissibility as evidence of the information requested and, notwithstanding any response or production made in response thereto, Karcher reserves the right to object at trial to the admissibility of any non-privileged responsive documents.

9. Any production, inadvertent or otherwise, of privileged documents or information by Karcher shall not constitute the waiver of any applicable privilege, nor shall it be construed to waive any objection, including that of relevancy or other admissibility into evidence of the documents or information that may be produced in this action.

10. All responses herein are subject to the foregoing general objections, whether or not specific objections are also asserted.

RESPONSES TO PLAINTIFFS' COMBINED DEMANDS**1. Demand for Photographs, Drawings, and Images in any and all Forms**

PLEASE TAKE NOTICE, that pursuant to CPLR Article 31 Defendants are required to produce any and all photographs, drawings, or images in any and all forms, including, but not limited to films, videotapes, audiotapes, raw data, data cards, digital depictions or similar, concerning any alleged occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleadings herein; or

RESPONSE: Karcher objects to this request on the grounds set forth in the foregoing general objections, which are hereby incorporated by reference. Karcher further objects to this request on the grounds that it is unduly burdensome and seeks documentation that is available from Plaintiffs and/or Defendant Richard A. Calvagno II ("Calvagno"). Subject thereto, and without waiving any additional objections, Karcher is not currently in possession of any photographs, drawings, or images in any and all forms, including, but not limited to films, videotapes, audiotapes, raw data, data cards, digital depictions or similar, concerning any alleged occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleadings that are responsive to this demand.

2. Demand for Discovery and Inspection of Any Party Statement

PLEASE TAKE NOTICE, Defendants are required to produce, pursuant to CPLR 3101(e) and 3120, and permit me to discover, inspect, copy and photocopy, any statement in the possession, custody or control of any party allegedly made by or taken from any Plaintiff in this action, or from any agent, servant or employee of any such party.

RESPONSE: Karcher objects to this request on the grounds set forth in the foregoing general objections, which are hereby incorporated by reference. Karcher further objects to this request on the grounds that it is unduly burdensome and seeks documentation that is available from Plaintiffs and/or Defendant Calvagno. Subject thereto, and without waiving any additional objections, Karcher is not currently in possession of any statement of any party allegedly made by or taken from any Plaintiff in this action, or from any agent, servant or employee of any such party that are responsive to this demand.

3. Demand for the Names and Addresses of All Witnesses

PLEASE TAKE NOTICE, that the undersigned demands, pursuant to CPLR 3101(a), that Defendants set forth in writing and under oath, within twenty (20) days of the service of this demand upon Defendants, the name and address of each person claimed by Defendants to be a witness to any occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleadings herein.

RESPONSE: Karcher objects to this request on the grounds set forth in the foregoing general objections, which are hereby incorporated by reference. Karcher further objects to this request on the grounds that it is unduly burdensome and seeks documentation that is available from Plaintiffs and/or Defendant Calvagno. Subject thereto, and without waiving any additional objections, Karcher is unaware of the identities of any person claimed to be a witness to any occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleading herein. Karcher expressly reserves the right to amend this response at a later date.

4. Demand for Expert Witness Disclosure

PLEASE TAKE NOTICE, that pursuant to CPLR § 3101(d), Defendants are required to provide the undersigned, within twenty (20) days, with the following: (a) the name and address of each expert witness Defendants intend to call at the trial of this action; (b) state the qualifications of expert witness; (c) state with specificity the subject matter upon which expert is expected to testify at the time of trial; (d) provide the facts and opinion upon which each expert is expected to testify at the time of trial; (e) provide a summary of the grounds of each expert's opinion, and attach any data in support of each opinion.

RESPONSE: Karcher objects to this request on the grounds set forth in the foregoing general objections, which are hereby incorporated by reference. Karcher has not yet designated any expert witnesses. Karcher expressly reserves his right to designate any expert witness(es) at a later date, and if any such expert witness(es) are designated, Karcher will timely provide the requested information.

5. Notice for Discovery and Inspection

PLEASE TAKE NOTICE, that Defendant/Third Party Plaintiff Marine Bulkheading, Inc. demands Plaintiffs produce, the following for discovery and inspection within thirty (30) days all documents that concern, reference, pertain, relate, reflect upon in any way or scope any alleged occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleading herein, this shall include, notes, memoranda, letters, texts, messages, phone logs, police reports, violations, summonses, permits, licenses, sales tax permits/authorizations, sales tax payments, agreements, catering agreements, party or event equipment rental/purchases agreements, invoices or receipts, food/catering contracts, agreements, invoices or receipts, rental agreements, guests lists, employment agreements, boat slip/dockage rental agreements.

RESPONSE: Karcher objects to this request on the grounds set forth in the foregoing general objections, which are hereby incorporated by reference. Subject thereto, and without waiving any other objections, this demand is unrelated to the current action.

PLEASE TAKE NOTICE that Karcher reserves the right to amend this response as permitted by law.

Dated: New York, New York
May 19, 2021

WARSHAW BURSTEIN, LLP
Attorneys for Defendant
Patrick J. Karcher



By: Marc A. Lavaia, Esq.
Maxwell J. Rubin, Esq.
575 Lexington Avenue, 7th Floor
New York, New York 10022
(212) 984-7845

To: John N. Cuomo, Esq.
Attorney for Plaintiffs
Diane C. Desousa and Thomas E. Desousa
11 Fern Drive
Commack, New York 11725
(631) 403-0515

Nabeela Hamid, Esq.
Jason M. Barbara & Associates, P.C.
Attorneys for Defendant
Richard Calvagno II
3 Dakota Drive, Suite 300
New Hyde Park, New York 11042
(516) 775-5557

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK**

-----X Index No: 600371/2021
DIANE C. DESOUSA AND THOMAS E. DESOUSA.

AFFIDAVIT OF SERVICE

Plaintiffs.

-against-

RICHARD A. CALVAGNO II AND PATRICK J. KARCHER.

Defendants.

STATE OF NEW YORK)
)
) SS
COUNTY OF NEW YORK)

LAUREN LEONARDI, being duly sworn, deposes and says that: Deponent is not a party to this action, is over 18 years of age and is employed by Warshaw Burstein, LLP, 575 Lexington Avenue, 7th Floor, New York, NY 10022.

On May 19, 2021, Deponent served the within **PATRICK J. KARCHER'S RESPONSES TO PLAINTIFFS' COMBINED DEMANDS** upon:

John N. Cuomo, Esq.
Attorney for Plaintiffs
Diane C. Desousa and Thomas E. Desousa
11 Fern Drive
Commack, New York 11725

Nabella Hamid, Esq.
Jason M. Barbara & Associates, P.C.
Attorney for Defendant
Richard Calvagno II
3 Dakota Drive, Suite 300
New Hyde Park, New York 11042

by depositing a set of true copies thereof, in securely sealed, post-paid, and properly addressed envelopes, via First-Class Mail, in an official depository of the United States Postal Service located within the City, County, and State of New York.

LAUREN LEONARDI

Sworn to before me this
19th day of May, 2021

Notary Public

MAXWELL JOHN RUBIN
Notary Public, State of New York
No. 02RUBIN-0000
Qualified in Nassau County
Commission Expires July 23, 2011

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Index No. 600371/2021

Plaintiff,

-against-

COMBINED DEMANDS

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendants.

PLEASE TAKE NOTICE, that DEFENDANTS are required to provide the following pursuant to the provisions of the Civil Practice Law and Rules and the Rules of this Court, all replies shall be returnable at the office of John N. Cuomo, 11 Fern Drive, Commack, NY 11725, within thirty (30) days of the date of this demand, or as otherwise provided by any Court order herein:

1. DEMAND FOR PHOTOGRAPHS, DRAWINGS and IMAGES IN ANY
AND ALL FORMS

PLEASE TAKE NOTICE, that pursuant to C.P.L.R. Article 31 DEFENDANTS are required to produce any and all photographs, drawings or images in any and all forms, including, but not limited to films, videotapes, audiotapes, raw data, data cards, digital depictions or similar, concerning any alleged occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleadings herein; or

2. **DEMAND FOR DISCOVERY AND INSPECTION OF ANY PARTY**
STATEMENT

PLEASE TAKE NOTICE, DEFENDANTS are required to produce, pursuant to CPLR 3101(e) and 3120, and permit me to discover, inspect, copy and photocopy, any statement in the possession, custody or control of any party allegedly made by or taken from any Plaintiff in this action, or from any agent, servant or employee of any such party.

3. **DEMAND FOR THE NAMES AND ADDRESSES OF ALL WITNESSES**

PLEASE TAKE NOTICE, that the undersigned demands, pursuant to CPLR 3101(a), that DEFENDANTS set forth in writing and under oath, within twenty (20) days of the service of this demand upon DEFENDANTS, the name and address of each person claimed by DEFENDANTS to be a witness to any occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleadings herein.

LEASE TAKE FURTHER NOTICE, that the above demands are continuing demands. In the event any of the above items are obtained after service of this demand, they are to be furnished to this office.

4. **DEMAND FOR EXPERT WITNESS DISCLOSURE**

PLEASE TAKE NOTICE, that pursuant to CPLR 3101(d), DEFENDANTS are required to provide the undersigned, within twenty (20) days, with the following:

- (a) The name and address of each expert witness DEFENDANTS intend to call at the trial of this action.
- (b) State the qualifications of each expert witness.
- (c) State with specificity the subject matter upon which each expert is expected to testify at the time of trial.
- (d) Provide the facts and opinion upon which each expert is expected to testify at the time of trial.
- (e) Provide a summary of the grounds of each expert's opinion, and attach any data in support of each opinion and conclusion.

PLEASE TAKE FURTHER NOTICE, that the above demands are continuing demands. In the event any of the above items are obtained after service of this demand, they are to be furnished to this office.

5. NOTICE FOR DISCOVERY AND INSPECTION

PLEASE TAKE NOTICE, that Defendant/Third Party Plaintiff MARINE BULKHEADING, INC. demands Plaintiffs produce, the following for discovery and inspection within thirty (30) days all documents that concern, reference, pertain, relate, reflect upon in any way or scope any alleged occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleading herein, this shall include, notes, memoranda, letters, texts, messages, phone logs, police reports, violations, summonses, permits,

licenses, sale tax permits/authorizations, sales tax payments, agreements, catering agreements, party or event equipment rental/purchases agreements, invoices or receipts, food/catering contracts, agreements, invoices or receipts, rental agreements, guest lists, employment agreements, boat slip/dockage rental agreements.

PLEASE TAKE FURTHER NOTICE, that the above demands are continuing demands. In the event any of the above items are obtained after service of this demand, they are to be furnished to this office.

Dated: Commack, New York
April 1, 2021

Yours etc.,



JOHN N. CUOMO
Attorney for Plaintiffs
11 Fern Drive
Commack, NY 11725
631-403-0515
631-326-9082 (fax)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Plaintiff,

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendants.

Index No. 600371/2021

**BILL OF
PARTICULARS**

Please take notice that the following is the Verified Bill of Particulars of
Plaintiffs Diane C. Desousa and Thomas E. Desousa:

1. Diane C.: November 1, 1946; Thomas E.: December 19, 1944.
2. Plaintiffs object to this item as being open and vague.
3. Plaintiffs object to this item as being beyond the scope of this device, reserving their objection Plaintiffs provide the following: various dates/times beginning November 2020 through the date of filing and continuing until present, the balance of this item is evidentiary in nature.
4. Plaintiffs object to this item as being beyond the scope of this device, reserving their objection they provide the following: RISEPRO Decibel Meter, Digital Sound Level Meter 30 – 130 dB Audio Noise Measure Device Model: HT-80A2d. Yes.
5. Plaintiffs object to this item as being beyond the scope of this device, reserving their objection Plaintiffs provide the following: October-November 2020.

6. Plaintiffs object to this item as being beyond the scope of this device and is seeking evidentiary, if not testimonial material.
7. See response to 6.
8. Plaintiffs object to this item as being beyond the scope of this device, reserving their objection, Plaintiffs provide the following: there were two official complaints filed in connection with Defendants activities 1) Jan 11, 2021, email to the Town of Amityville; 2) date unknown phone call to Amityville Police Department.
9. See response to 8.
10. See response to 8.
11. See response to 8
12. See response to 8.
13. See response to 8.
14. See response to 8.
15. See response to 8
16. Plaintiffs object to this item as being beyond the scope of this device, reserving their objection, Plaintiffs provide the following: various dates and times, orally to Defendant Calvagno, about his actions comprising the subject of this action.
17. See response to 16.
18. Plaintiffs object to this item as being beyond the scope of this device and is seeking evidentiary, if not testimonial material. The verified complaint in this action sets forth the facts describing the acts of the Defendant; further details can be derived from the appropriate discovery device.
19. See response to 18.
20. See response to 18.
21. See response to 18.

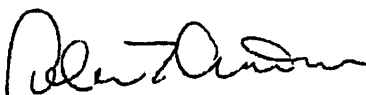
22. Plaintiffs object to this item as being beyond the scope of this device and is seeking evidentiary, if not testimonial material; reserving their objection, Plaintiffs provide the following: None.

23. See response to 22.

24. Those include, but are not limited to: New York State Vehicle and Traffic Law Article 14; Chapter 618 of the Suffolk County, New York Noise Code; Part 14-1 of the New York State Department of Health Rules and Regulations; Chapters 3, 6, 5, 7 and 8 of the Fire Code of the State of New York, § 49 *et. seq.* of the Building Code for the Village of Amityville, New York.

PLEASE TAKE FURTHER NOTICE, Plaintiffs reserve the right to amend, supplement, modify or correct these responses or objections as required.

Dated: Commack, New York
March 30, 2021



John N. Cuomo
Attorney for Defendant
Marine Bulkheading, Inc.
11 Fern Drive
Commack, NY 11725
(631) 403-0515
(631) 326-9082 (fax)
johncuomo@gmail.com

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF SUFFOLK)

DIANE C. DESOUSA being duly sworn, deposes and says that deponent is the plaintiff in the within action; that deponent has read the foregoing BILL OF PARTICULARS and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

Sworn to before me this
30th day of March 2021

Notary Public

BRENDA LOMBARDO
Notary Public, State of New York
No. 0161400013
Qualified in Suffolk County
Commission Expires March 28, 2022

Brenda Lombardo

Diane Desousa

STATE OF NEW YORK)
) ss.:
COUNTY OF SUFFOLK)

THOMAS E. DESOUSA being duly sworn, deposes and says that deponent is the plaintiff in the within action; that deponent has read the foregoing BILL OF PARTICULARS and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

Sworn to before me this
30th day of March, 2021

Notary Public

BRENDA LOMBARDO
Notary Public, State of New York
No. 0161400013
Qualified in Suffolk County
Commission Expires March 28, 2022

Brenda Lombardo

Thomas E. Desousa

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Plaintiff,

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendants.

Index No. 600371/2021

OMNIBUS RESPONSE
TO DEMANDS OF
DEFENDANT
CALVAGNO

PLEASE TAKE NOTICE Plaintiffs by and thorough their attorney John N. Cuomo, as and for its responses to the demands of Defendant Richard A. Calvagno II state as follows:

DEMAND FOR ADVERSE PARTY STATEMENTS

1. MBI is not in possession of any statement adverse party statements.

DEMAND FOR ALL EXPERT WITNESS INFORMATION

2. Plaintiffs have yet to retain any expert/consultant witness(es) with respect to this litigation. If and when such experts are utilized, the names, qualifications of said expert, subject matter of anticipated testimony and foundation for said testimony will be provided pursuant to CPLR§ 3101(d).

DEMAND FOR PHOTOGRAPHS AND VIDEOS

3. Are produced herewith in connection with this response.

DEMAND FOR NAMES AND ADDRESSES OF WITNESSES

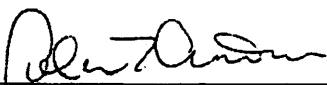
4. Other than both Plaintiffs, that list is still being complied; as soon as that information is collected and completes it will be produced.

DOCUMENT PRODUCTION

5. Are produced herewith in connection with this response.

PLEASE TAKE NOTICE that Plaintiffs, reserve right to supplement and/or amend these responses in accordance with the CPLR, as to items and information they did not have within their possession at the time this response was prepared, up to and including at the time of the trial of this matter. Furthermore, Plaintiffs reserve all rights and objections to all demands made hereunder.

Dated: Commack, New York
March 30, 2021



John N. Cuomo
Attorneys for Plaintiffs
11 Fern Drive
Commack, New York 11725
631-403-0515

Brenda Barber

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X

DIANE C. DESOUSA AND THOMAS E.
DESOUSA,

Plaintiff,

Index No.: 600371/2021

-against-

**RESPONSE TO PLAINTIFFS'
COMBINED DEMANDS**

RICHARD A. CALVAGNO II AND PATRICK
J. KARCHER,

Defendant.

-----X

Defendant RICHARD A. CALVAGNO II, by his attorneys Jason M. Barbara & Associates, P.C., responding to Plaintiff's Combined Demands dated April 1, 2021, states the following upon information and belief.

GENERAL STATEMENTS AND OBJECTIONS

1. All of the General Statements and Objections made herein are applicable to and are hereby incorporated into each and every response to each specific discovery request, and the response to any discovery request is made subject to and without waiver of the General Statements and Objections. The assertion, however, of the General Statements and Objections does not preclude the assertion of additional specific objections.
2. Defendant objects to each and every discovery request to the extent that it seeks information or documents protected against disclosure by the attorney-client

privilege, work product doctrine, or other applicable claim of privilege. Defendant does not waive or intend to waive, but rather intends to preserve and is preserving, all available privileges with respect to all information and documents subject thereto. The extent that any information or document which is properly the subject of any such privilege or protection is inadvertently produced in response to these requests, and such production is not intended as, and should not be construed as a waiver of any such privilege or protection.

3. Defendant objects to each and every discovery request to the extent that it seeks information or documents which are not reasonably calculated to lead to the discovery of admissible evidence.

4. Defendant objects to each and every discovery request to the extent that it purports to require the disclosure of information and/or documentation relating to any entity other than Defendant and/or that related to any policy not identified in Defendant's complaint. Such request is overbroad, unduly burdensome, oppressive and harassing. Moreover, such request is not calculated to lead to the discovery of admissible evidence. Defendant further objects on the basis that information and/or documentation pertaining to entities other than Defendant is confidential and proprietary.

5. Defendant objects to each and every discovery request to the extent that it seeks disclosure of opinions, mental impressions, conclusions of legal theories of Defendant or is counsel, consultants, or other representatives.

6. Defendant objects to each and every discovery request to the extent that it

purports to require the disclosure of information and/or documentation within the propounding party's knowledge or to which the propounding party has equal or better access on the grounds that each and every request is unduly burdensome, oppressive, harassing and exceeds the scope of any legitimate needs of the propounding party for such discovery.

7. Defendant objects to each and every discovery request to the extent that it purports to require the disclosure of information and/or documentation that is not relevant to this matter and/or not reasonably calculated to lead to the discovery of admissible evidence. By responding to the discovery request, Defendant does not concede that any of the information and/or requested and/or provided is relevant to or admissible in this action. Defendant expressly reserves the right to object to or otherwise challenge the introduction into evidence of any of its responses or portions thereof.

8. Defendant objects to terms that are undefined which would force Defendant to speculate as to the meaning and the information sought.

9. Defendant objects to each and every discovery request to the extent that it seeks more information, imposes greater obligations, and/or requires more by way of a response, production or otherwise, than is required by the Civil Practice Law and Rules, any rule or order of the Court herein, or other applicable law.

10. Each response herein which states that certain documents will be provided or produced is not, and should not be construed as an admission or representation that such

documents in fact exist.

11. Defendant's responses are based upon information currently known to Defendant after reasonable inquiry. Defendant reserves the right to amend these responses in accordance with New York's Civil Practice Law and Rules to the extent additional responsive information is obtained during the course of ongoing discovery and investigation.

SPECIFIC RESPONSES

1. DEMAND FOR PHOTOGRAPHS, DRAWINGS, and IMAGES IN ANY AND ALL FORMS

Subject to and without waiving any objections, besides the photographs provided by the Plaintiffs, see attached "Photographs".

2. DEMAND FOR DISCOVERY AND INSPECTION OF ANY PARTY STATEMENT

Subject to and without waiving any objections, see attached "Police Reports" dated November 4, 2020 and March 18, 2021.

3. DEMAND FOR THE NAMES AND ADDRESS OF ALL WITNESSES

Subject to and without waiving any objections, Vincent Camarda located at 325 Grand Central Ave, Amityville, New York 11701, Elaine Chance and Pauline Calvagno.

4. DEMAND FOR EXPERT WITNESS DISCLOSURE

Defendant reserves the right to designate an expert witness in accordance with the CPLR.

5. NOTICE FOR DISCOVERY AND INSPECTION

This demand is inapplicable to the Defendant and the instant action. As such, a response is not required.

PLEASE TAKE NOTICE, Defendant reserves the right to supplement his response up to and including the time of trial.

Dated: New Hyde Park, New York
May 18, 2021

Yours, etc.,

JASON M. BARBARA & ASSOCIATES, P.C.
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